

Motion to Strike

The court **DENIES** Defendant PAUL MAKHAIL's motion to strike portions of the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER JING.

Makhail moves to strike the following from the TAC:

"Although in Plaintiffs' original Complaint, there were allegations about an incident in June 2022 in a paragraph that preceded the allegations about the poster being hung, no date was given as to when a 'letter' was posted in the guardhouse. The Complaint also alleged that there was not just one letter posted in the guardhouse but two."

(TAC, p. 6, ¶ 30, lines 3-6.)

Makhail argues that this paragraph exceeds the scope of this court's ruling permitting leave to amend. (See 2/10/26 Order.)

The court disagrees. The paragraph appears to address a contradiction raised by co-defendants in their demurrer to the SAC. (See 2/10/26 Minute Order, at p. 4.) As such, the portion sought to be stricken does not exceed the scope of the leave previously granted.

In sum, the court DENIES Makhail's motion to strike.

Defendant Makhail SHALL file and serve an Answer to the TAC within 10 days. (Cal. Rules of Ct., rule 3.1320(g).)

Plaintiffs to give notice.

2. Powerstone Property and Mourer

The court **SUSTAINS** Defendants POWERSTONE PROPERTY MANAGEMENT and SCOTT MOURER's (collectively, "Defendants") demurrer to the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER

JING, **without leave to amend**. Defendants demur generally and on the ground of uncertainty. (Code Civ. Proc., § 430.10(e), (f).)

This court previously sustained Defendants' general demurrer to the Second Amended Complaint ("SAC") on the basis that the SAC failed to allege facts showing wrongdoing by either Mourer or Powerstone. (ROA 369, p. 4.)

The court finds that the TAC also fails to allege facts showing wrongdoing by either Mourer or Powerstone. The TAC merely adds the following allegations: On 10/17/22, Makhail circulated an email to Mourer, and Mourer told Plaintiffs that since Makhail hired Mourer, Mourer would do what Makhail wanted him to do. (TAC, ¶ 29.)

The TAC's allegations against Mourer and Powerstone remain deficient. For example, nowhere in the TAC do Plaintiffs allege that either Powerstone or Mourer wrongfully published private information about either plaintiff. Nor does the TAC allege facts showing that either Powerstone or Mourer made the decision to hang the Jing Poster in the guardhouse. Rather, the TAC alleges that Mourer was an employee of Powerstone and that Powerstone was a property management company for the Pacific Ridge Homeowners Association. (TAC, ¶¶ 5-7, 21.)

As Plaintiffs have now had numerous opportunities to amend, the court **SUSTAINS without leave to amend**.

Moving Defendants to give notice.

Motions to Be Relieved as Counsel

The motions are **DENIED as MOOT**. On 4/20/26, attorney JAMES W. DENISON filed motions to be relieved as counsel for Plaintiffs (1) DOUGLAS WONG and (2) JENNIER JING. (ROA 407.) Shortly thereafter, Substitutions of Counsel forms (MC-050) were filed on 4/23/26, whereby attorney Denison was substituted out as Plaintiffs' counsel. (ROA 417, 418.)